

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ALEXANDER DIAZ,

Plaintiff,

-against-

CITY OF NEW YORK, SERGEANT WALSH,
BADGE NUMBER 8431, POLICE OFFICER FARLEY,
BADGE NUMBER 7049, POLICE OFFICER LOPEZ,
BADGE NUMBER 14994, AND POLICE OFFICER
O'BRIEN, BADGE NUMBER 4134,

Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates New York
County as the place of trial.

Basis of venue is place
of occurrence.

SUMMONS

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
November 7, 2023



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
ALEXANDER DIAZ
180 South Broadway - Suite 306
White Plains, New York 10605
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

SERGEANT WALSH, BADGE NUMBER 8431,
POLICE OFFICER FARLEY, BADGE NUMBER 7049,
POLICE OFFICER LOPEZ, BADGE NUMBER 14994,
POLICE OFFICER O'BRIEN, BADGE NUMBER 4134,
13th Precinct
230 East 21st Street
New York, New York 10010

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
ALEXANDER DIAZ,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, SERGEANT WALSH,
BADGE NUMBER 8431, POLICE OFFICER FARLEY,
BADGE NUMBER 7049, POLICE OFFICER LOPEZ,
BADGE NUMBER 14994, AND POLICE OFFICER
O'BRIEN, BADGE NUMBER 4134,**VERIFIED COMPLAINT**Defendants.
-----X

Plaintiff ALEXANDER DIAZ by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, respectfully alleges as follows:

1. Plaintiff ALEXANDER DIAZ is a Hispanic male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.

2. At all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

3. At all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.

4. At all times hereinafter mentioned, Defendant SERGEANT WALSH, BADGE NUMBER 8431, was employed by Defendant CITY OF NEW YORK as a police officer.

5. At all times hereinafter mentioned, Defendant SERGEANT WALSH, BADGE NUMBER 8431, acted within the scope of his employment for Defendant CITY OF NEW YORK.

6. At all times hereinafter mentioned, Defendant SERGEANT WALSH, BADGE NUMBER 8431, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state

7. At all times hereinafter mentioned, Defendant POLICE OFFICER FARLEY, BADGE NUMBER 7049, was employed by Defendant CITY OF NEW YORK as a police officer.

8. At all times hereinafter mentioned, Defendant POLICE OFFICER FARLEY, BADGE NUMBER 7049, acted within the scope of his employment for Defendant CITY OF NEW YORK.

9. At all times hereinafter mentioned, Defendant POLICE OFFICER FARLEY, BADGE NUMBER 7049, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

10. At all times hereinafter mentioned, Defendant POLICE OFFICER LOPEZ, BADGE NUMBER 14994, was employed by Defendant CITY OF NEW YORK as a police officer.

11. At all times hereinafter mentioned, Defendant POLICE OFFICER LOPEZ, BADGE NUMBER 14994, acted within the scope of his employment for Defendant CITY OF NEW YORK.

12. At all times hereinafter mentioned, Defendant POLICE OFFICER LOPEZ, BADGE NUMBER 14994, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

13. At all times hereinafter mentioned, Defendant POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, was employed by Defendant CITY OF NEW YORK as a police officer.

14. At all times hereinafter mentioned, Defendant POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, acted within the scope of his employment for Defendant CITY OF NEW YORK.

15. At all times hereinafter mentioned, Defendant POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

16. On September 3, 2022, at approximately 1:30 A.M., Plaintiff ALEXANDER DIAZ was inside the "Slate NY" nightclub located at 54 West 21st Street, in the County, City and State of New York, when he was assaulted by the nightclub's security staff.

17. Immediately thereafter Plaintiff ALEXANDER DIAZ exited the nightclub and approached Defendants POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, and SERGEANT WALSH, BADGE NUMBER 8431, (hereinafter the "DEFENDANT POLICE OFFICERS") to report the recent assault against his person. Initially, the DEFENDANT POLICE OFFICERS were attentive and asked Plaintiff what had happened to him, however, when he reported that he had been assaulted by the nightclub's security staff the DEFENDANT POLICE OFFICERS lost interest, told Plaintiff to "go home" or words to that effect, and began to ignore Plaintiff. Puzzled at this behavior, but undeterred, Plaintiff ALEXANDER DIAZ again attempted to report the assault on his person. When the DEFENDANT POLICE OFFICERS continued to ignore him, Plaintiff ALEXANDER DIAZ became upset and asked why the DEFENDANT POLICE OFFICERS were "trying to protect the security staff at the club", or words to that effect.

18. Apparently angered by Plaintiff ALEXANDER DIAZ's comment, the DEFENDANT POLICE OFFICERS proceeded to rear cuff Plaintiff and placed him under arrest despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so. While handcuffing Plaintiff ALEXANDER DIAZ, the DEFENDANT POLICE OFFICERS over tightened the handcuffs to the point that they became extremely painful and caused injury to Plaintiff's wrists. Plaintiff ALEXANDER DIAZ told the DEFENDANT POLICE OFFICERS that the handcuffs were too tight, that they were extremely painful, and requested that they be loosened. In response, Plaintiff ALEXANDER DIAZ was told that the handcuffs would "be

off soon”, or words to that effect. As time passed at the arrest location, Plaintiff ALEXANDER DAVIS continued to complain about the hand-cuffs, one of the DEFENDANT POLICE OFFICERS did examine the handcuffs but did not significantly loosen them.

19. Following his arrest, Plaintiff ALEXANDER DAVIS was transported by ambulance to a local hospital. Plaintiff ALEXANDER DAVIS had not requested medical attention and had not consented to go to the hospital. Accompanying Plaintiff in the ambulance were Defendants POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O’BRIEN, BADGE NUMBER 4134. While in the ambulance, Plaintiff ALEXANDER DAVIS again complained that the handcuffs were too tight and again requested that they be loosened. Said requests were ignored

20. After arriving at the hospital Plaintiff ALEXANDER DAVIS was examined by medical staff who found no reason to admit Plaintiff. Shortly thereafter, the DEFENDANT POLICE OFFICERS removed the handcuffs from Plaintiff and released him without charge.

21. Plaintiff ALEXANDER DIAZ remained handcuffed and was illegally detained for approximately three hours before being released without charge.

22. As a result of the foregoing, Plaintiff ALEXANDER DIAZ sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

23. On October 25, 2022, within 90 days of the happening of the complained of incident but more than 30 days prior to the commencement of this action, Plaintiff ALEXANDER DIAZ duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and claimant’s attorney; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

24. More than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE

OFFICER O'BRIEN, BADGE NUMBER 4134.

25. The Municipal Hearing regarding the above claim was held on January 27, 2023.

26. This action is commenced within one year and ninety days after the cause of action arose

AS AND FOR A FIRST CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR FALSE ARREST

27. Plaintiff ALEXANDER DIAZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

28. Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, arrested Plaintiff ALEXANDER DIAZ in the absence of probable cause and without a warrant.

29. As a result of the aforesaid conduct by Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, Plaintiff ALEXANDER DIAZ was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely imprisoned, detained, and confined by the Defendants.

30. The aforesaid actions by the Defendants constituted a deprivation of Plaintiff ALEXANDER DIAZ's rights.

AS AND FOR A SECOND CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR FALSE IMPRISONMENT

31. Plaintiff ALEXANDER DIAZ repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

32. As a result of the foregoing, Plaintiff ALEXANDER DIAZ was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

33. Plaintiff ALEXANDER DIAZ was conscious of said confinement and did not consent to same.

34. The confinement of Plaintiff ALEXANDER DIAZ was without probable cause and was not otherwise privileged.

35. As a result of the aforementioned conduct, Plaintiff ALEXANDER DIAZ has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**AS AND FOR A THIRD CAUSE OF ACTION
FOR FALSE ARREST UNDER 42 U.S.C. § 1983**

36. Plaintiff ALEXANDER DIAZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

37. That at the aforementioned time and place, Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, placed Plaintiff ALEXANDER DIAZ under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

38. That Plaintiff ALEXANDER DIAZ had not committed any offense and Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

39. That Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, were aware that probable cause did not exist for the arrest and detention of Plaintiff ALEXANDER DIAZ and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff ALEXANDER DIAZ and such actions were committed in bad faith.

40. That, in all of the wrongful acts above alleged, Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE

OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff ALEXANDER DIAZ and such actions were committed in bad faith.

41. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff ALEXANDER DIAZ was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

42. As a further result of the above-described acts, Plaintiff ALEXANDER DIAZ was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983

43. Plaintiff ALEXANDER DIAZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

44. Plaintiff ALEXANDER DIAZ was falsely imprisoned by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

45. Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants SERGEANT WALSH, BADGE NUMBER

8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, and intended to confine Plaintiff ALEXANDER DIAZ, and Plaintiff ALEXANDER DIAZ was conscious of the confinement, and Plaintiff ALEXANDER DIAZ did not consent to the confinement.

46. Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff ALEXANDER DIAZ and damaging Plaintiff ALEXANDER DIAZ in his reputation and depriving him of his liberty.

47. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff ALEXANDER DIAZ suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR MUNICIPAL LIABILITY

48. Plaintiff ALEXANDER DIAZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

49. Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the Constitution of the United States.

50. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to,

wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

51. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well- being and constitutional rights of Plaintiff ALEXANDER DIAZ.

52. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff ALEXANDER DIAZ as alleged herein.

53. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff ALEXANDER DIAZ as alleged herein.

54. Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, while acting under the color of state law, were directly and actively involved in violating Plaintiff ALEXANDER DIAZ' constitutional rights.

55. All of the foregoing acts by Defendant CITY OF NEW YORK, its agents, servants and/or employees including Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, deprived Plaintiff ALEXANDER DIAZ of federally protected rights including, but not limited to, the right:

- A. To be free from seizure and arrest not based on probable cause;
- B. To be free from unlawful search; and
- C. To receive equal protection under the law.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR NEGLIGENCE IN THE PERFORMANCE OF DUTIES

56. Plaintiff ALEXANDER DIAZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges

57. That on September 3, 2022, Defendant CITY OF NEW YORK through its agents, servants and/or employees including, but not limited to, Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, negligently, carelessly, recklessly, and without cause, reason or justification injured Plaintiff ALEXANDER DIAZ when, *inter alia*, Defendants improperly and negligently applied handcuffs to Plaintiff's wrists.

58. That Defendant CITY OF NEW YORK its agents, servants and employees, including Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, negligently, carelessly and recklessly performed their duties in that they failed to use such care in the performance of their duties as a reasonably prudent police officer would have used under similar circumstances; in failing to exercise due care, diligence and forbearance so as to have avoided this incident and the injuries to the Plaintiff; in violating those laws, statutes, ordinances, rules and regulations applicable hereto, of which the Court may take judicial notice; and in that Defendant CITY OF NEW YORK, its agents, servants and employees, including Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, were otherwise careless, reckless and negligent.

59. As a result of the foregoing, Plaintiff ALEXANDER DIAZ suffered serious personal injuries causing him to become and remain sick, sore, lame, and disabled; confining him to cell and bed; compelling him to obtain hospital and medical treatment for the injuries in an effort to

alleviate and/or cure some of the injuries and disabilities; incapacitating him from his usual duties, and thereby depriving him of the emoluments deprived therefrom, preventing him from enjoying the normal fruits of his activities; and resulting in emotional distress, loss of liberty, substantial monetary expenses, loss and injuries, some of which are permanent in nature.

60. The injuries and damages sustained by Plaintiff ALEXANDER DIAZ were caused by reason of Defendants' negligence and were not caused by any want, lack of care or caution on the part of the Plaintiff.

61. This action falls within one or more of the exceptions set forth in CPLR 1602.

62. By reason of the foregoing, Plaintiff ALEXANDER DIAZ has been damaged in an amount in excess of the jurisdiction of all lower Courts that might otherwise have jurisdiction in this matter.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION**

63. Plaintiff ALEXANDER DIAZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

64. Defendant CITY OF NEW YORK was careless and reckless in hiring and retaining as and for its employees Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

65. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION**

66. Plaintiff ALEXANDER DIAZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

67. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, in the exercise of their employment functions, and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff ALEXANDER DIAZ. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

68. The failure of Defendant CITY OF NEW YORK to train, supervise, discipline or in any other way control Defendants SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, in the exercise of their employment functions and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff ALEXANDER DIAZ.

AS AND FOR NINTH CAUSE OF ACTION FOR
RESPONDEAT SUPERIOR LIABILITY

69. Plaintiff ALEXANDER DIAZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

70. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

71. As a result of the foregoing, Plaintiff ALEXANDER DIAZ is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages in the sum of Two Million Dollars (\$2,000,000.00)

WHEREFORE Plaintiff ALEXANDER DIAZ demands judgment against Defendants CITY OF NEW YORK, SERGEANT WALSH, BADGE NUMBER 8431, POLICE OFFICER FARLEY, BADGE NUMBER 7049, POLICE OFFICER LOPEZ, BADGE NUMBER 14994, and POLICE OFFICER O'BRIEN, BADGE NUMBER 4134, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Two Million Dollars (\$2,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
November 14, 2023



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
ALEXANDER DIAZ
180 South Broadway - Suite 306
White Plains, New York 10605
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF WESTCHESTER)

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am a principal in the law office of Tracie A. Sundack & Associates, L.L.C., attorneys of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by our office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
November 14, 2023



TRACIE SUNDACK